

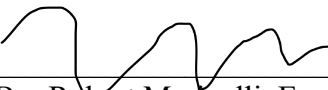
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
MARCUS CHAVIS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
DILLON SAMAROO (SH# 23509), POLICE OFFICER
ARNULFO LUCIANO (SH# 23097), POLICE OFFICER
RONALD FREEMAN (SH# 14767), POLICE OFFICER
DWIGHT WANZER (SH# 20981), POLICE OFFICER(S)
JOHN/JANE DOE(S) (*Police Officers whose identify
is currently unknown*),Defendant(s).
-----X**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: February 11, 2020
New York, NY
By: Robert Marinelli, Esq.
Attorney for Plaintiff
Law Office of Robert Marinelli, PC
305 Broadway, Ste. 1001
New York, New York 10007
(212) 822-1427Defendants' Addresses:THE CITY OF NEW YORK
New York City Law Department
100 Church Street
New York, NY 10007POLICE OFFICER DILLON SAMAROO (SH# 23509)
Police Service Area 7

737 Melrose Avenue
Bronx, NY 10455

POLICE OFFICER ARNULFO LUCIANO (SH# 23097)
Police Service Area 7
737 Melrose Avenue
Bronx, NY 10455

POLICE OFFICER RONALD FREEMAN (SH# 14767)
Police Service Area 7
737 Melrose Avenue
Bronx, NY 10455

POLICE OFFICER DWIGHT WANZER (SH# 20981)
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Defendant(s).

-----X

Index No.

COMPLAINT

Jury Trial Demanded on All
Issues

Plaintiff, by his attorney, ROBERT MARINELLI, ESQ., complaining of the Defendants,
respectfully alleges as follows:

PARTIES

1. At all times hereinafter mentioned, Plaintiff MARCUS CHAVIS (“Plaintiff” or
“Chavis”) was and is a resident of the State of New York.

2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK (the
“CITY”) was and still is a municipality organized and existing under and by virtue of the laws of
the State of New York.

3. At all times hereinafter mentioned, defendant New York City Police Department
(“NYPD”), was an agency of the CITY, and the CITY operated, maintained, managed,
supervised and controlled the NYPD as part of an in conjunction with its municipal function

4. At all times hereinafter mentioned, defendants POLICE OFFICER DILLON
SAMAROO (SH# 23509), POLICE OFFICER ARNULFO LUCIANO (SH# 23097), POLICE
OFFICER RONALD FREEMAN (SH# 14767), POLICE OFFICER DWIGHT WANZER (SH#

20981), POLICE OFFICER(S) JOHN/JANE DOE(S) (*Police Officers whose identify is currently unknown*) (collectively, “Individual Defendants”) were police officers, employees and agents of NYPD and CITY, acting within the scope of his employment and under color of state law.

5. Individual Defendants are sued in their individual and official capacities.

JURISDICTION

6. This Court has concurrent jurisdiction over the 42 USC § 1983 causes of action herein, pursuant to *Felder v. Casey*, 487 US 131, 139 (1988).

FACTUAL ALLEGATIONS

7. On January 15, 2018 at around 8:30pm Mr. Chavis was lawfully in the hallway of his apartment building of 525 Jackson Avenue in Bronx County.

8. At the above stated time and place Individual Defendants approached Chavis, asked Chavis if he lived in the building, and requested his ID despite having no objective credible reason, founded or reasonable suspicion or probable cause to do so.

9. Chavis declined to show his ID or answer the Individual Defendants’ questions.

10. Individual Defendants then grabbed Chavis and slammed his head and shoulder against a wall, causing serious injury.

11. Individual Defendants then handcuffed Chavis, which eventually became too tight, slammed him against a wall again, and threatened Chavis with further physical assault.

12. Individuals Defendants arrested and processed Chavis.

13. Individual Defendants passed on fabricated allegations to the Bronx County District Attorney’s office regarding their encounter with Chavis at 525 Jackson Avenue which caused criminal proceedings to commence and continue against Chavis.

14. As a result, Chavis was formally charged with Assault in the Third Degree (PL 120.00(1)), Resisting Arrest (PL 205.30), Obstructing Governmental Administration (PL 195.05), Disorderly Conduct (PL240.20(2)), and Harassment in the Second Degree (PL 240.26(1)), in Bronx County Criminal Court under Docket# 2018BX001761.

15. Chavis requested to go to the hospital at Central Bookings but was told he could not until his arresting officer was present. He did not go to a hospital until after his release.

16. All charges under Docket# 2018BX001761 were eventually dismissed.

FIRST CAUSE OF ACTION:
False Arrest/Imprisonment and Unreasonable Stop
42 U.S.C. § 1983

17. Plaintiff incorporates by reference and realleges all of the preceding paragraphs of this complaint as though fully set forth herein.

18. Defendants violated the Fourth and Fourteenth Amendments because they stopped and arrested plaintiffs without probable cause or reasonable suspicions.

19. As a direct and proximate result of this unconstitutional conduct, Plaintiff sustained the damages herein alleged.

SECOND CAUSE OF ACTION
Malicious Prosecution
(Pursuant to 42 U.S.C. § 1983)

20. Plaintiff incorporates herein by reference the allegations set forth in the preceding paragraphs.

21. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of plaintiff's constitutional right to be free from malicious prosecution under the Fourth and Fourteenth

Amendments to the United States Constitution.

22. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional rights. The prosecution by defendants of plaintiff constituted malicious prosecution in that there was no basis for the plaintiff's arrest, yet defendants continued with the prosecution, which was resolved in plaintiff's favor.

23. As a direct and proximate result of this unconstitutional conduct, Plaintiff sustained the damages herein alleged.

**THIRD CAUSE OF ACTION
Denial of the Right to a Fair Trial
(Pursuant to 42 USC § 1983)**

24. Plaintiff incorporates herein by reference the allegations set forth in the preceding paragraphs.

25. The Individual Defendants created false evidence against Plaintiff.

26. The Individual Defendants forwarded false evidence to prosecutors in the Bronx County District Attorney's office.

27. As a direct and proximate result of this unconstitutional conduct, Plaintiff sustained the damages herein alleged.

**FOURTH CAUSE OF ACTION
Excessive Force
(Pursuant to 42 USC §1983)**

28. Plaintiff incorporates herein by reference the allegations set forth in the preceding paragraphs.

29. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable, disproportionate force on plaintiff.

30. As a direct and proximate result of this unconstitutional conduct, Plaintiff

sustained the damages herein alleged.

FIFTH CAUSE OF ACTION
Failure to Intervene
(Pursuant to 42 USC §1983)

31. Plaintiff incorporates herein by reference the allegations set forth in the proceeding paragraphs.

32. Those defendants who were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth and Fourteenth Amendments.

33. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein alleged.

SIXTH CAUSE OF ACTION:
Failure to Provide Adequate Medical Attention
(Pursuant to § 1983)

34. Plaintiff incorporates herein by reference the allegations set forth in the proceeding paragraphs.

35. While under their custody and control, Plaintiff was owed a constitutional duty to be provided with adequate medical attention by the NYPD and the NYC Department of Correction and was not provided with such even after he was injured by members of the NYPD.

SEVENTH CAUSE OF ACTION:
Municipal Liability
(Pursuant to § 1983)

36. Plaintiff incorporates herein by reference the allegations set forth in the preceding paragraphs.

37. This is not an isolated incident. The City, through policies, practices and customs,

directly caused the constitutional violations suffered by Plaintiff.

38. The City, through its police department, has had and still has hiring practices that it knows will lead to the hiring of police officers lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

39. The City, through its police department, has a de facto quota policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury, and through the police department and Department of Correction has a practice of failing to provide adequate medical attention.

40. Upon information and belief, the City, by widespread custom and practice, did not exercise reasonable care and diligence in the selection, engagement, employment and training of its agents, servants, and employees, including Individual Defendants so as to constitute deliberate indifference to civilians' constitutional rights.

41. The City, at all relevant times, was aware that these individual defendants routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

42. Upon information and belief, the City had prior knowledge of the inappropriate, unlawful and improper conduct of its agents, servants and employees, including Individual Defendants that deprived civilians, including Mr. Chavis of his constitutional rights, so as to constitute deliberate indifference.

43. The City, at all relevant times, was aware that these individual defendants are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct these policies, practices, and customs were the moving force behind plaintiff's injuries.

JURY DEMAND

44. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

CPLR § 1602 STATEMENT

45. That this action falls within one or more of the exceptions set forth in the C.P.L.R. §1602.

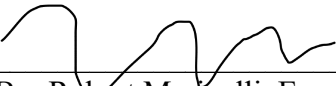
1. CPLR Section 1602, Subdivision 7, relating to “the defendants’ having acted with reckless disregard for the safety of others”.
2. CPLR Section 1602, Subdivision 11, relating to “the defendants’ having acted knowingly or intentionally and in concert to cause the act or failures”.

CONCLUSION

WHEREFORE, Plaintiff requests that the Court grant the following relief jointly and severally against Defendants:

- a) Compensatory damages;
- b) Punitive damages;
- c) Attorneys' fees and costs pursuant to 42 U.S.C. §1983;
- d) Interest, costs and disbursements;
- e) Other and further relief as the court deems proper.

Dated: February 11, 2020
New York, NY



By: Robert Marinelli, Esq.
Attorney for Plaintiff
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New York, New York 10007
(212) 822-1427